



File No.: EXP202300971

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On December 27, 2022, a complaint was filed with the Spanish Agency for Data Protection against the management company of the COMMUNITY OF OWNERS R.R.R. with NIF ***NIF.1 (hereinafter, the complained party).

The reasons for the complaint are as follows:

"That A.A.A. is the administrator of my Community of Owners, who in November installed a security camera at the entrance of my building without a prior meeting of owners, and showing favoritism towards a neighbor, since the purpose of said camera was to keep the belongings of this neighbor, which were left in the communal area, making private use of it. Given the arrogant attitude and lack of professionalism, in my opinion, in the exercise of her functions as administrator, I sent a burofax dated November 21 to Am Gestiones y Administración, withdrawing the authorization that I had previously signed for them to use and process my personal data...

On the 14th, I received a certified letter denying this request since, according to them, they have a legitimate right to use my personal data as administrators of the Community of Owners of the property where I live... That same afternoon, I had a heated conversation with A.A.A., and two hours later, at the entrance of my building, a paper notice was posted, an Ordinary Call to gather the neighbors, with my personal data included in said notice as a provocation and mockery (using them as a letterhead), being the only data that appeared there. Consequently, I believe that this lady is making irregular use of personal data, as she previously included them in a prior notice, using them as an example to fill out an attached document for those who did not want to attend, so they could delegate attendance to a third party... Consequently, I have the perception that this lady and the company she represents, of which she holds a managerial position, show total contempt for the Data Protection Law and the rights we citizens have under this law. Therefore, I request this esteemed Agency to regulate this situation by conducting the corresponding inspection of said company."

She requests the deletion of her data.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

She provides an image of the surveillance camera (totally blurred) and of the notice along with her data.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the period of availability, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on February 15, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, with the procedure considered completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail for informational purposes, which was duly notified on February 28, 2023. In this notification, they were reminded of their obligation to interact electronically with the Administration, and they were informed of the means of access to such notifications, reiterating that, henceforth, they would be

notified exclusively by electronic means.

No response has been received to this forwarding letter.

THIRD: On March 27, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/8

II

Right to Erasure ("the right to be forgotten")

Article 17 of the GDPR provides as follows:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to

make impossible or seriously impair the achievement of the objectives of that processing, or
e) for the establishment, exercise or defense of legal claims."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/8

III

Legitimacy for Processing

Article 6(1) of the GDPR establishes the conditions under which the processing of personal data is considered lawful:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

For its part, Article 5(1)(c) of the GDPR, relating to the principles of processing, provides that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ("data minimization")." This article enshrines the principle of data minimization in the processing of personal data. It implies that such processing should be adjusted and proportionate to the purpose it is directed at, and the processing of excessive data should be restricted or the data should be erased.

Relevance in the processing of data must occur both in the collection of the data and in the subsequent processing carried out on them.

Article 13, paragraphs 1 and 2, of the GDPR establishes the information that must be provided to the data subject at the time of data collection. In the case of personal data processing for surveillance purposes through camera systems or video cameras, the information duty may be fulfilled by placing an informative sign in the monitored areas, located in a sufficiently visible place, both in open and closed spaces, and using printed materials detailing the required information, which the controller must make available to the data subjects.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/8

On the other hand, in accordance with the provisions of Article 22 of the LOPDGDD, specifically referring to "Processing for the purposes of video surveillance," the processing of images in public places may only be carried out—if applicable and after fulfilling the legally required conditions—by the Security Forces and Bodies, unless the exception established in the aforementioned Article 22 of the LOPDGDD applies to natural or legal persons, public or private, respecting the conditions required in that article.

In some cases, the protection of private spaces is only possible if the cameras are located in areas such as façades. Sometimes it is also necessary to capture access points, doors, or entrances, so that, even if the camera is located inside the building, it is impossible not to record a minimal and essential part of the public thoroughfare, which is inevitably captured.

For this exception regarding the protection of private spaces to be applicable, there must not be an alternative installation possibility. In these cases, the person responsible for the processing carried out through cameras will adjust the use of the installation so that the impact on the rights of third parties (passersby) is minimized. Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, nor may it affect the surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

IV

Installed Camera

The complainant raises three issues in her complaint, all directed against a natural person, the Administrator of the Community.

The first concerns the installation of a video surveillance camera in a common area; the second refers to the refusal to delete her data; and the third indicates that a paper notice for an Ordinary Meeting to gather the neighbors has been placed, with her personal data included in that notice as a provocation and mockery (using it as a letterhead), with her data being the only ones that appear.

Firstly, it should be noted that property administrators are not usually responsible for the data processing carried out in the properties they manage, but rather act as data processors, as this responsibility typically falls on the Communities of Owners, which manage the common spaces and are responsible for obtaining, if applicable, the majority of the owners for its installation.

The complainant provides a photograph of the camera installed in common areas, as she claims. The lack of clarity in the photograph prevents assessing whether it is operational, what type of images are captured, who installed it, who decides on the purpose of the captured images, or what that purpose may be, where, who, and how the images are viewed, etc.

The principle of presumption of innocence prevents attributing an administrative infraction when evidence of wrongdoing has not been obtained and verified.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/8

certifying the facts that motivate the accusation or the involvement of the alleged offender in the same. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges, in any case, to resolve such doubt in the most favorable manner for the interested party. The presumption of innocence must prevail without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of *ius puniendi* in its various manifestations is conditioned upon the presentation of evidence and a contradictory procedure in which one's own positions can be defended.

In this regard, the Constitutional Court in its Judgment 76/1990, dated 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

The presumption of innocence prevails without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned upon the presentation of evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

V

Right of suppression of the co-owners

The claiming party attaches the response provided regarding the exercise of the right of suppression made before the Administrator of the Community of Property to which they belong. In that response, they are informed that they cannot attend to the right of suppression because there is a legal obligation for the data controller to maintain them.

In the case of communities of property, the legitimacy for processing them does not derive from the existence of prior consent, but rather based on compliance with a legal obligation (the content of the Horizontal Property Law). That is to say, with the application of the GDPR, it is not necessary to request consent from the property owners to process their personal data, as the legitimacy arises from the aforementioned legal compliance. The same will occur with the use of video surveillance. It is also not a case where consent operates, but rather the exercise of a public interest mission, such as guaranteeing the safety of people, property, and facilities.

Consequently, the response is in accordance with the provisions established in the data protection regulations.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/8

Finally, regarding the placement on paper of an Ordinary Call to gather the neighbors, with the personal data of the complainant, Law 49/1960, of July 21, on Horizontal Property (LPH) also provides for the installation of "bulletin boards," for the purpose of enabling the notification of acts of interest to the Community, when prior attempts at notification have been unsuccessful. Article 9. h) of the LPH establishes among the obligations of the owner the requirement to indicate an address for the purposes of notifications and summons. In the absence of such an address, the property or premises belonging to the Community shall be considered as such. However, it adds: "If an attempt to summon or notify the owner is impossible to carry out at the designated place [...], it shall be understood as having been made by placing the corresponding communication on the community bulletin board, or in a visible common area designated for this purpose, with due diligence expressing the date and reasons for proceeding with this form of notification, signed by the person exercising the functions of secretary of the community with the approval of the president. Notification made in this manner will produce full legal effects within three calendar days."

The dissemination of personal data in unrestricted access spaces for owners, on the walls of portals or on common use bulletin boards, could violate data protection regulations. However, the responsibility for any potential infringement could only be determined if some means of proof were provided that would allow for the identification of who disseminated the personal data. In particular, in the event that the affected document had been placed, outside of the legally provided cases, on a locked bulletin board whose custody was exclusively assigned to its governing bodies, it would be the Community of Owners, constituted by all its members and not just the individuals representing it, that would assume all effects of responsibility for a possible infringement of data protection regulations.

In this case, the call was not located on a locked bulletin board of the Community of Owners, which does not allow for determining who is responsible for its placement.

VI

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the statement made by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the COMMUNITY OF OWNERS R.R.R. and to the complainant.

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es

8/8

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es